

Sec. 22-26. - Adoption of and additions to the Florida Building Code.

1. *Adoption.* There is hereby adopted by reference, the Florida Building Code, Eighth Edition (2023), and any amendments thereto, to be enforced by Collier County in the unincorporated portions of the County.
2. *Additions.* The following additions, adjustments, amendments, and exemptions are added to the Eighth Edition (2023) Florida Building Code, as amended:

Definitions. For purposes of this section, the following terms apply:

Repair. To restore by replacing a part or putting together what is torn or broken; to restore or renew any part for the purpose of its maintenance or to correct damage.

Replacement. To put something new in the place of, to remove the entire component (not a part of) and install a new component in former place or position.

Like for Like, Like Kind. Similar use, type, operation and service connection.

104.8 Liability.

The building official, member of the board of appeals or employee charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be civilly or criminally rendered liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. Any suit instituted against an officer or employee or board member because of an act performed by that officer or employee or board member in the lawful discharge of duties and under the provisions of this code shall be defended by legal representative of the jurisdiction until the final termination of the proceedings. The building official or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of this code.

104.8.1 Legal defense.

Any suit or criminal complaint instituted against an officer or employee or board member because of an act performed by that officer or employee or board member in the lawful discharge of duties and under the provisions of this code shall be defended by legal representatives of the jurisdiction until the final termination of the proceedings. The building official or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of this code.

105.2 Work exempt from permit.

The following permit exemptions have been established for Collier County based on Section 105.2.2 of the Florida Building Code and Section 553.73(4)(a), Florida Statutes.

Exemptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code. Permits shall not be required for the following:

Mechanical:

9. Dustless ventilation isolated systems, that do not affect any fire penetrations or rated assemblies.

Plumbing:

3. Plumbing fixture repair or replacement, that does not affect any fire penetrations or rated assemblies.

Electrical:

1. Ceiling fixture replacement using existing outlet box and wiring, that does not affect any fire penetrations or rated assemblies.

Building:

1. Flooring installation.
2. Painting/wallpaper.
3. Finish trim work.
4. Interior door replacement not affecting existing framed opening.
5. Drywall repair/replacement that are not fire-related and are small areas that do not exceed two sheets of drywall (64 sq. ft.).
6. Gutters and leaders.

105.2.4. Exemptions for detached single-family residences.

The following permit exemptions have been established for Collier County based on Sections 102.2.5 and 105.2.2 of the Florida Building Code, and Sections 553.73(4)(a) and 553.80(3)(b)(1), Florida Statutes.

The following permit exemptions are for owners of single-family or their hired licensed non-owner (contractor) of detached residences performing work on detached single-family properties. All work performed shall comply with the standards of the Florida Building Code Residential and Florida Statutes.

Exemptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code. Permits shall not be required for the following:

Electrical:

1. Repair work performed by licensed electrical contractors that does not exceed \$1,500.00 in value of materials and labor.
2. Repair or replace existing light fixtures and ceiling fans.
3. Repair or replace electrical wall switches and wall outlet devices of 20 amps or less and 120 volts.
4. Repair/replace low voltage (under 77 volts) devices.

Plumbing:

1. Repair work performed by licensed plumbing contractors that does not exceed \$1,500.00 in value of materials and labor.
2. Repair water solar panels by licensed plumbing contractors.
3. Change out of an above ground LP tank 100 lbs. or less.
4. Repair irrigation system.
5. Repair domestic water service/lines.
6. Unclog sewer stoppage.
7. Repair sewer line excluding repair or replacement of interceptors, separators by licensed plumbing contractors.
8. Repair/replace faucets.
9. Repair/replace water closet/bidet fixtures only.
10. Repair/replace sink/lavatory fixtures only.
11. Repair/replace residential pool equipment other than pool heater.
12. Repair/replace shut-off valve on a domestic water line.
13. Repair/replace house pumps not exceeding 2 horsepower.
14. Repair/replace residential garbage disposal.
15. Repair/replace residential dishwasher.
16. Repair/replace like-for-like kind electric water heater up to 52-gallon capacity to include electrical connection.
17. Repair/replacement of water purification/water softener equipment.

Mechanical:

1. Repair work performed by licensed mechanical contractors that does not exceed \$1,500.00 in cost for parts and labor.
2. Repair of air conditioning duct.
3. Repair/replace coil, compressor or refrigerant piping.
4. Repair/replace non-combustion heating.
5. Repair/replace ventilation fans.
6. Replacement of window air conditioning unit utilizing existing electrical.
7. Installation of ductless ventilation and range hoods.

Building:

1. Repair work performed by licensed contractors per Chapter 489, Florida Statutes, that is not structural in nature and does not change the occupancy, does not affect life safety and the value of which does not exceed \$1,500.00 in labor and materials.
2. The repair of any roof covering not exceeding \$1,500.00 in value of materials and labor or work not exceeding two roofing squares (200 sq. ft.) in extent.
3. Installation or repair of satellite dishes installed in accordance with manufacturers' specifications and in compliance with local zoning requirements.
4. Installation or repair of canvas or cloth-covered awnings.
5. Installation or repair of rain gutters.
6. Enclosure of existing covered patios/balconies/porches with screening.
7. Cement plaster (stucco) applied directly onto structures constructed of concrete masonry units. Application of cement plaster must meet or exceed the manufacturers' recommendations. All other applications will require a permit including but not limited to wood, Exterior Insulation Foam System (EIFS), brick, siding, or other application over metal lath or wire lath fabric.
8. Door or window repair including swinging, sliding, pivoting, and rolling excluding the frame, which does not otherwise create a new opening, enlarge or reduce an existing opening, or require the removal of any exterior or interior finish material serving a building constructed on a residential zoned lot. This exemption shall not allow nor relieve the building owner, unit owner, installer or contractor from complying with wind load and opening protection requirements of the Florida Building Code.
9. Movable cases, counters, and partitions not over 10 feet in height.
10. Cabinetry, countertops, painting, papering, tiling, carpeting, and other similar finish work. This exemption is not allowed nor applicable when the work or alteration affects the structural integrity of a load bearing wall, or the fire-resistant material of a fire rated horizontal or

vertical separation. Projects located within a designated flood hazard area are required to comply with the substantial improvement requirements and submit a cost breakdown for any work which may be exempted from permits.

11. Swings and similar playground equipment accessory. This exemption shall not allow nor permit the encroachment of setbacks or the erection of any unsafe, structurally unsound, or dilapidated structure. In the event the structure violates setbacks or is considered unsafe, structurally unsound, or dilapidated, the building official may require a permit.

Note: All work shall comply with all applicable laws, ordinances, building codes and zoning regulations. To assure your safety and to assure proper construction and/or installation, those homeowners who are not familiar with the provisions and requirements of the Florida Building Code are encouraged to review code requirements prior to doing any work or repairs or they can contact the County building department if they have any questions. Homeowners lacking the technical background and familiarity with the code requirements are encouraged to have the work done by a licensed professional/contractor or as an alternative apply for a permit where they will receive a technical review of the proposed work and where they will receive all required onsite technical inspections performed by a state licensed building inspector.

107.3.1 Approval of construction documents.

The following amendment to the administrative provisions of the Florida Building Code has been established for Collier County based on Section 107.3 of the Florida Building Code and Section 553.74(4)(a), Florida Statutes.

When the building official issues a permit, the construction documents shall be approved, in writing or by stamp, as "Reviewed for Code Compliance." One set of construction documents so reviewed shall be retained by the building official. The other set shall be returned to the applicant, shall be kept at the site of work, and shall be open to inspection by the building official or a duly authorized representative. Digital copies available at the site of work and open to inspection by the building official or a duly authorized representative will also be accepted.

110.3 Required Inspections.

Building

1. Foundation inspection. To be made after trenches are excavated and forms erected and shall at a minimum include the following building components:
 - 1.2 The permit holder shall submit, within 10 calendar days of this inspection, a spot survey depicting the building foundation to the authority having jurisdiction. For structures without a foundation inspection and that require a minimum floor elevation, a spot survey is required prior to receiving a certificate of Occupancy/Completion. The spot survey shall

be prepared by or under the direct supervision of a Florida Registered land surveyor and certified by same and shall be in a form acceptable to the Building Official. The Building Official has the right to waive this requirement for certain small, non-habitable structures.

(Ord. No. 2012-14, § 1; Ord. No. 2015-36, § 1; Ord. No. 2017-52, § 1; Ord. No. 2020-48, § 1; Ord. No. 2023-64, § 1; Ord. No. 2024-40, § 1)